

**National Report for Sri Lanka on 11th Consultation on Implementation of 1960 Convention
and Recommendation against Discrimination in Education**

GENERAL INFORMATION:

Country name: Sri Lanka

Organization or entity responsible for the preparation of the report: National Education Commission

Name of contact person: Padmini Ranaweera, Chairman of the National Education Commission

Email and telephone number of contact person: chnec2018@gmail.com, pranaweera1234@gmail.com

Telephone number of contact person: + 94 112662039, + 94 773771418

I. Ratification and applicability of the Convention against Discrimination in Education

Sri Lanka has accepted the convention and its recommendations on the 11th August in 1983.

Since 1947 Government of Sri Lanka (GoSL) provides free education from grade One to first degree level in state schools and universities having the national goals of ensuring equity, equality of access and quality in education. The Convention is directly applicable in the country's domestic law. Constitutional provision on the fundamental right of education of all children in Sri Lanka is applicable in the country's domestic law and the education ordinance no. 31 of 1939 is the only law regarding the right to education in Sri Lanka. According to Part V, Article 37(1) of the ordinance, the Minister of Education has the power to make regulations for the purpose of giving effect to the principles and provisions of the ordinance.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

Sri Lankan education system since 1930s has been greatly influenced by the progressive legislative enactments and regulations and policies such as enactment of Education Ordinance No. 31 of 1939¹, introduction of free education along with making in mother tongue as the medium of instruction in primary education in 1945², establishment of Central School system to cater for clusters of feeder schools³, etc. The momentum created was further accelerated by the sound policies and programs developed and implemented since independence in 1948 that have helped not only to promote access but also to improve participation and achievement of all students, with special attention to those who are excluded, vulnerable, or at risk of being marginalized. Besides that, the children belonging to indigenous people are given the opportunity to attend neighboring state schools, and even pursuing tertiary education at university level, and as such there has not been discrimination

¹ Education Ordinance, No 31 of 1939, <https://www.ilo.org>.

² School Grants (Revised Conditions) Regulations, Dated 1945/08/24

³ The Rise and Fall of the Central Colleges: A cursory Glance, C. T. M. Fernando, Retrieved from <https://www.infolanka.com/org/srilanka/hist/35.htm>

towards them in the country. Moreover In the year 2016, Sri Lanka has ratified the ‘Convention on the Rights of Persons with Disabilities and the National Secretariat for Persons with Disabilities’ and has developed and adopted the inclusive plan for promoting inclusive education from 2019 onwards {Inclusive Education Plan Sri Lanka (2019–2030)}⁴.

According to the Constitution of Sri Lanka, Sinhala and Tamil are the two national languages. As of the national policy on medium of instruction, all students shall be entitled to be educated through the medium of either of the national languages in primary education and beyond. Therefore, all government schools, as the national policy provide instructions to students at all levels in their first or home language. The completion rates of students in all three levels who have their first or home language as language of instruction were satisfactory; 90.0%, 87.0% and 81.3% in 2020 respectively, at primary, lower-secondary and upper secondary levels. Further, the female completion rates were higher than males in 2020 at all 3 levels⁵.

Education Sector Development Framework 2018-2025⁶ of the MoE has identified two strategies to ensure equity, inclusion and gender equality for providing access to quality learning opportunities for all students. In 2020, the Ministry of Education issued the Circular No.37/2020 dated 03.12.2020⁷ on Special and Inclusive Education and the Guidance Manual on “Giving Inclusive Education for all Children including the Provision of Education Facilities for the Children with Special Education Needs and Special Needs”.

1.1 Non-discrimination and equality in education

Sri Lanka has developed and adopted an Inclusive Education Plan for the period from 2019 to 2030⁸, which articulates five key areas in disability-inclusive education: policy, curriculum development, human resources development, infrastructure development and awareness of inclusive education. There is an apparent focus on ensuring children with disabilities are admitted in regular classrooms through the revision of existing admission policies. The Inclusive Education Plan 2019–2030 recognizes the need to establish structures for inclusive education within the formal school system. Hence, MoE will identify and build the capacity of inclusive education officers, in-service advisers and Special Education Needs (SEN) coordinators at the central and local levels. Special education teachers will also be recruited and deployed. Furthermore, the pre-service curriculum offered by the National Colleges of Education will be revised in 2022 to add inclusive education as a mandatory subject by then.

Tertiary and Vocational Education Commission identified persons with disabilities as one of the disadvantaged groups, and has recognized the need for the provision of reasonable adjustment in assessments schemes and systems, and hence in certification process. Accordingly, they have introduced reasonable adjustments to National Vocation Qualification (NVQ) assessment scheme for candidates with disabilities through NVQ Circular 01/2020⁹ dated 01.10.2020.

⁴ Disability Education practice in Sri Lanka, 2021. August, UNICEF Regional Office for Sri Lanka. Colombo.

⁵ National Education Commission (2023). National SDG 4 Midterm Review

⁶ Ministry of Education. (2017). Sri Lanka: Education Sector Development Plan- General Education in Sri Lanka (2018-2025), Ministry of Education, Battaramulla, Sri Lanka.

⁷ Ministry of Education, Circular No.37/2020, dated, 03.12.2020 Special and Inclusive Education and the Guidance Manual.

⁸ Disability Education Practice in Sri Lanka, 2021 August, UNICEF Regional Office for Sri Lanka.

⁹ Tertiary and Vocational Education Commission, NVQ Circular, 01/2020, dated 01.10. 2020. Reasonable adjustments in NVQ Assessments for Candidate with Disabilities.

University Grants Commission (UGC) in Sri Lanka has established a Standing Committee on Gender Equity/Equality in Higher Education to promote gender equity/equality in Sri Lankan universities. According to the UGC policy of admitting students to universities under special provision, few places are allocated to blind and differently-abled candidates. According to the UGC Hand Book 2021 (P.160)¹⁰ under this special provision, candidates with disabilities will be considered, provided they satisfy the minimum requirements, for university admission and appropriate subject pre-requisites for the relevant course of study. According to the UGC Standing Committee on Education, a disability policy for all universities has been prepared and is pending approval of the UGC.

1.2 Equality of opportunities and inclusion in education

Sri Lanka has committed to eliminate child, early and forced marriage by 2030 in line with target 5.3 of the Sustainable Development Goals. Sri Lanka ratified the Convention on the Rights of the Child in 1991, which sets a minimum age of marriage of 18, and the Convention on the Elimination of All Forms of Discrimination Against Women in 1981, which obligates states to ensure free and full consent to marriage. Sri Lanka is a member of the South Asian Initiative to End Violence against Children (SAIEVAC) which adopted a regional action plan to end child marriage from 2015-2018. Sri Lanka will ensure access to legal remedies for child brides and establish a uniform minimum legal age of marriage of 18.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early Childhood care and education

Pre-primary refers to children aged 4-5 years and Sri Lanka has not enacted any legislation to make pre-primary education compulsory and GOSL doesn't provide free pre-primary education. As of 2018 data, there are approximately 19,216 early childhood development (ECD) centres in the country that enrol a total of 578,160 children aged 2–5 years¹¹. Approximately 71% of ECD centres are stand-alone centres, privately managed as preschools. The remaining are managed by public institutions and local government authorities, such as municipal and urban councils (19.8%), religious organizations (6.8%), and non-governmental organizations (3%)¹². The enrolment rate of three to five-year-olds in preschool education is 55.6% with disparities in enrolments among urban, peri-urban, and rural areas, and among high- and low-income groups. The enrolments are largely equitable across boys (50.3% of total) and girls (49.7% of total)¹³.

However, pre-primary or early childhood education is widely accepted and promoted within the country. As a result, an effective monitoring framework with feasible indicators is planned to support improving access and quality ensuring one-year compulsory pre-primary education in the new education transformation plan of the government¹⁴.

¹⁰ University Grants Commission (2021). Sri Lanka University Statistics 2021. University Grants Commission, Sri Lanka.

¹¹ Statistical Handbook (2021) State Ministry of Women and Child Development, Pre School and Primary Education, School Infrastructure and Education Services

¹² Ministry of Women and Child Affairs (2016) National Census of Early Childhood Development Centres in Sri Lanka

¹³ Ministry of Women and Child Affairs (2016) National Census of Early Childhood Development Centres in Sri Lanka

¹⁴ National Education Policy Framework 2023-2033

According to the UIS data on the gross enrolment ratio of both sexes in pre-primary education were around 70% from 2015 to 2020¹⁵. Reasons for non-attendance seem to be multifaceted: Children from economically disadvantaged families may have reduced access to quality early childhood development programs due to financial limitations. Children in remote or plantation sector too may have reduced access due to difficult geographical locations. Primary schools in such locations are encouraged to provide space and other facilities to start a pre-primary class to ensure access of those children in pre-primary education.

Strengthening pre-primary education with appropriate national policy backed by a national legal framework is proposed and piloted in collaboration with provincial authorities as ECE is a devolved subject. Developing a national curriculum framework and introducing quality assurance and certification system are too being proposed and piloted under the National Education Policy Framework (NEPF) 2023-2033.

Facilitating a smooth transition from preschool to primary school has been ensured through proposed in NEPF 2023-2033 by transferring authority of ECE to the MOE, which handle primary education. This is part of the new education transformation of Sri Lanka currently being piloted. Early childhood development and education in the Sri Lankan estate sector have been improving over the past few years due to interventions from both governmental and non-governmental organizations.

2.2 Primary and secondary education

Primary Education

Sri Lanka provides free education from primary education until completion of tertiary education. Enactment of Education Ordinance of No. 31 of 1939, making the provision of education formally free. Kids who have completed 5 years of age enrol for primary education. Primary education spans from age 5-9 (Grade 1-5) which is compulsory.

The government provides a package of welfare services to pupils in schools in addition to free education. These include:

- Free textbooks to all students from grades 1 to 11.
- Free school uniform materials to all children from grades 1 to 13.
- Health insurance for all schoolchildren.
- Grants to children with special needs and those from marginalised families.
- Bursaries for children from needy families annually based on the results of grade 5 scholarship examination.
- Subsidised public transport for all children travelling in public transport.
- Midday meal for children in disadvantaged primary and small schools.
- Glass of milk for school children in identified disadvantaged schools.

These welfare measures have contributed to the high rate of participation in education and the high literacy rate and educational attainments in the country.

¹⁵ National Education Commission (2023) National SDG 4 midterm Review Sri Lanka

Regulations to enforce compulsory education for the 5-14 age group were introduced with Gazette notification of 1003/5 of 25 November 1997¹⁶. Number of years of compulsory primary and secondary education guaranteed through the legal framework had been 9 years (age 5-14) till 2015. Since 2016 it was increased to 11 years (age 5-16) through the government Gazette No. 1963/30 dated 20.04.2016¹⁷

To provide quality and equitable access to primary and secondary education to every child, currently, 10126 government schools are functioning all over the country where 3,969,597 students enjoy free education¹⁸. Among these students, 1,567,689 are in primary grades. Enrolment in primary education in Sri Lanka is remarkable. According to World Bank Statistics School enrolment in primary grades (net) was 99.1% in 2018.

School enrolment, primary (% net)	2015	2016	2017	2018	2019	2020
	98.9	98.9	99.1	99.1	-	-

The completion rate of primary education in Sri Lanka is also satisfactory. As mentioned in UIS statistics, the completion rate of primary education of both sexes was 90% in 2018, and increased to 93%, and then again declined to 90% by 2020. It can be observed that the female completion rates were higher than those of males.

Despite Sri Lanka's significant progress in expanding access to education, challenges remain for children with disabilities, those from low-income families, and those living in conflict-affected areas. Sri Lanka remains dedicated to achieving inclusive education and supporting all children, which requires investments in access, resources, and inclusive practices.

Education Sector Development Plan 2018 – 2025 prepared by the MoE¹⁹, is based on the principles of “learning for all” in primary and secondary stages of education. This Strategic Plan is based on four thrust areas of which the first is “To strengthen equity in education: equitable learning opportunities for all children”. The main purpose of the thrust area one is to strengthen the equity in education through providing learning opportunities for all children without any discrimination. To achieve this purpose several objectives, components and strategies have been identified. Some of the strategies were (a) Development of schools in rural areas and very difficult areas, schools with less than 50 and 100 students (b) Strengthening special education (SE), inclusive education and non-formal education (NFE) (c) Development of schools in the plantation sector and Tamil medium school.

Sri Lanka exhibits a low dropout rate in primary education. Out of school rate for primary education in both sexes has declined from 0.94% in 2015 to 0.54 in 2018. When comparing the UIS data with the national benchmark values defined by Education for All Branch of Ministry of Education, showed that Sri Lanka has already achieved the benchmark values prescribed for 2025²⁰.

¹⁶ Gazette Notification, No. 1003/5 dated 1997/11/25, “Compulsory Education Regulation”

¹⁷ Gazette Notification, No. 1963/30, dated 2016/04/20, " Series of regulations of sending children compulsorily to school of 2015/01 “

¹⁸ <http://www.statistics.gov.lk/Education/StaticallInformation/SchoolCensus/Summary2022>

¹⁹ Ministry of Education (2020). Education Sector Development Plan 2020 - 2025. Retrieved from <https://moe.gov.lk/wp-content/uploads/2021/11/General-Education-Sector-Development-Plan-2021-2025-1.pdf>

²⁰ National Education Commission (2023). National SDG 4 Midterm Review

Indicator (SDG 4.1.4)	2015	2016	2017	2018	National Target by 2025	National Target by 2030
Out-of-school rate for children of primary school age, both sexes (%)	0.94	0.94	0.72	0.54	1.5	1.0

There is no administration of nationally representative learning assessment at the end of primary education with regard to literacy, and numeracy.

However, department of examination of MOE is conducting a national examination for students in Grade 5 with the intention of awarding bursaries to children with outstanding performance from economically disadvantaged families and selection for admission to secondary education with better facilities. From 2019-2023 the percentage of students achieving or surpassing the Cut-Off has consistently ranged from 14% to 15%. However, more than 75% of students in each province scored over 70 marks for both papers at the examination held in 2023 (except for the eastern province - 69.5%)²¹.

	2018	2019	2020	2021	2022	2023
No. of students sat	350,191	332,168	326,264	335,158	329,668	332,949
% Obtained marks 100 or above (50 or above for each paper)		57.25	66.11	48.10	47.81	45.06
% Equal or above the Cut-Off (Qualified to receive bursaries and apply for schools)	10.32	14.35	14.46	14.18	14.64	15.22

To maintain the quality of education, the curriculum is revised every 8 years considering the new global education trends. All the required competency levels, delivery methodologies, minimum compulsory time period for each subject and co-curricular activities are defined in the national curriculum with some flexibility. The government provides all essential teaching and learning resources free of charge, including textbooks, teachers' guides, classrooms, laboratory equipment, and various other physical, financial, and in-kind resources.

Further, the Ministry of Education evaluates the entire education system, including administrative procedures, curriculum implementation, and human resources development, through a quality assurance system.

Disparity in learning outcomes is observed due to examination pressure at the completion of primary education to seek enrolment in popular secondary schools in some urban contexts. Digitalization and English medium instruction have become popular demands by the parents. Public-private partnerships are encouraged to provide infrastructure to fulfil some of those needs.

Professionally qualified teachers are an asset in the quality education process. Teachers who hold qualifications such as (a) Teachers who are having National Colleges of Education (NCoE) diploma (b)

²¹ Department of Examination (2023). Performance of Candidates, Grade 5 scholarship Examination - 2023. Retrieved from https://www.doenets.lk/images/resources/STAT/G5POC2023_1701077958725.pdf

Graduate teachers with the postgraduate diploma in education (PGDE) or Bachelor of Education; are considered as professionally qualified teachers.

As per the UIS statistics the pupil-to-qualified teacher ratio (i.e. number pupils per qualified teacher) in primary level was 27.18 in 2016 and then has improved to 25.96 in 2020²².

Indicator (4.c.4)	2016	2017	2018	2019	2020
Pupil-qualified teacher ratio in primary education (headcount basis)	27.18	26.77	26.47	26.00	25.96

Secondary education

Students who have completed 10 years of age enrol for lower secondary education. Lower Secondary education spans from age 11-14 (Grade 6-9) which is compulsory and free of charge.

Students who have completed 14 years of age enrol for upper secondary education. Upper Secondary education spans from age 15-18 (Grade 10-13) which is free of charge.

Regulations to enforce compulsory education for the 5-16 age group were introduced with government Gazette No. 1963/30 dated 20.04.2016. Therefore, lower secondary education (Grade 6-9) is compulsory but upper secondary education is compulsory only up to age 16 (i.e up to Grade 11).

As mentioned in the primary education section the government provides a package of welfare services to pupils in schools such as free textbooks, school uniform, meals, transportation etc.

Sri Lanka has ratified all major international conventions (such as the International Labour Organization Convention 138 on minimum age of employment) and has adequate legislation to eliminate child labour.

The government has decided to align the minimum age for starting employment with the age of completing compulsory schooling. Therefore, increases the minimum age for employment from fourteen (14) to sixteen (16) years. Additionally, for the purpose of employment of young persons, the definition of a 'young person' has been amended to be a person who has attained the age of sixteen (16), but is under the age of eighteen (18) years, whereas 'children' are defined to be persons under sixteen years of age.

Accordingly, the Government recently introduced a revised set of laws and regulations by passing 4 Bills in Parliament, with the view of implementing the above amendments to the following 4 Acts connected to the area of employment and labour²³:

- (i) Shop and Office Employees (Regulation of Employment and Remuneration) Act No 19 of 1954²⁴ - Section 10 of the Act has been amended to increase the employable age from 14 years to 16 years of age.

²² National Education Commission (2023). National SDG 4 Midterm Review

²³<https://www.desaram.com/minimum-age-for-employment-to-be-raised-to-16/#:~:text=Sri%20Lanka%20has%20ratified%20all,%2C%20'hazardous'%20or%20otherwise.>

²⁴ https://employers.lk/wp-content/uploads/2021/03/10_Shop-and-Office-Employees-Regulation-of-Employment-and-Remuneration-Amendment-Act-No.-1-of-2021.pdf

- (ii) Employment of Women, Young Persons, and Children Act, No. 47 of 1956²⁵ - Section 34 of the Act has been amended to describe a 'young person' as a person who has attained the age of sixteen years but is under the age of eighteen years, thereby increasing the minimum age of employment of 'young persons' to 16 years of age. A 'child' is described to be a person under the age of 16, and the age of a person attending elementary school also has been amended to be increased to 16 years of age.
- (iii) Factories Ordinance (Chapter 128) No.45 of 1942²⁶ - Section 127 of the Act has been amended to describe a 'young person' as a person who has attained the age of sixteen years but is under the age of eighteen years, thereby increasing the minimum age of employment of 'young persons' to 16 years.
- (iv) Minimum Wages (Indian Labour) Ordinance No.27 Of 1927²⁷ - Section 4 of the Act has been amended to increase the employable age from 14 years to 16 years of age.

Enrolment in secondary education in Sri Lanka is impressive. According to World Bank Statistics, School enrolment in Secondary grades (net) was 91% in 2018. Therefore, access to education is considerably high in Sri Lanka.

However, to further improve access to and participation for primary and secondary education, the Ministry of Education has developed several strategies in its Education Sector Development Plan 2018 - 2025²⁸. Some of these strategies were; (a) Establishing 1,000 national schools throughout the country. (b) Establishing 20 new secondary trilingual national schools on district basis. (c) Rationalizing the school system and establishing school networks. (d) Implementation of 13 years guaranteed education programme.

The completion rate at lower secondary level was 88.4% in 2018 and it decreased slightly to 87% in 2020. At upper secondary level, it was 80.6% in 2018 and increased marginally to 81.3% in 2020. As per the national benchmark values defined by the Education for All Branch of Ministry of Education, in 2020 Sri Lanka is lagging behind the 2025 target for the completion rates at lower-secondary levels in both sexes while surpassing the national benchmark values defined for upper-secondary education level for 2025 and 2030²⁹.

Indicator Name	2018	2019	2020	2021	2022	Target by 2025	Target by 2030
Completion rate of Lower Secondary Education (%) - Both Sexes (%)	88.4	87	87	-	-	90.2	90.3
Completion rate of Upper Secondary Education (%) - Both Sexes (%)	80.6	81.4	81.3	-	-	77.2	81.1

²⁵ <https://www.parliament.lk/uploads/acts/gbills/english/6200.pdf>

²⁶ https://employers.lk/wp-content/uploads/2021/03/4_Factories-Amendment-Act-No.-4-of-2021.pdf

²⁷ https://employers.lk/wp-content/uploads/2021/03/7_Minimum-Wages-Indian-Labour-Amendment-Act-No.-3-of-2021.pdf

²⁸ Ministry of Education (2020). Education Sector Development Plan 2020 - 2025

²⁹ National Education Commission (2023). National SDG 4 Midterm Review

Sri Lanka shows a low dropout rate in lower secondary education. Out of school rate for lower secondary education in both sexes has declined from 1.33% in 2017 to 0.13 in 2018. When comparing the UIS data with the national benchmarks values defined by Education for All Branch of Ministry of Education, showed that Sri Lanka has already achieved the benchmark values prescribed for 2025. However, the out of school rate at upper secondary level of both sexes has remained as high as 18.88% in 2017, but declined 15.79% by 2018. Therefore, more efforts are needed at upper- secondary level to reduce out-of-school rate (from 15.79% to 12.8%) over the next few years to reach the benchmark value defined for 2030³⁰.

Indicator Name	2015	2016	2017	2018	Target by 2025	Target by 2030
Out-of-school rate for adolescents of lower secondary school age, both sexes (%)	-	-	1.33	0.13	2.2	2.0
Out-of-school rate for youth of upper secondary school age, both sexes (%)	-	-	18.88	15.79	17.6	12.8

Measures have been taken to minimize the dropout rates further through welfare activities including mid-day meal, uniforms and textbooks, etc., and also by introducing the 13-Years Guaranteed Education program, targeting those students who fail to proceed to upper senior-secondary education.

At the end of secondary education, there is no nationwide assessment that comprehensively evaluates literacy and numeracy. However, Department of examination is conducting national examinations for students in Grade 11 (GCE O/L) and Grade 13 (GCE A/L). GCE O/L examination, held at the end of grade 11, qualifies students to choose a suitable stream in GCE A/L or to continue in a vocational stream under the 13 years guaranteed education programme. Results in year 2022, indicates that nearly 70% of students from each province pass the GCE O/L examination, with moderate differences observed among the provinces. The pass rates for first languages are notably high in both Sinhala (88.7%) and Tamil (88.2%). However, the pass rates for other key subjects such as English (73.50%), mathematics (73.36%), and science (72.19%) indicate a necessity for improving achievement levels in these areas³¹. The GCE A/L examination, administered at the end of grade 13, determines students' eligibility for university admission. Provincial-wise performance of data in year 2023 illustrates, on the average 66% of students from the provinces were eligible for university entrance³².

As per the UIS statistics the pupil-to-qualified teacher ratio in lower-secondary level was 20.55 in 2016 and then slightly decreased to 20.84 in 2020. At upper-secondary level, there was a substantial decline from 21.50 in 2016 to 24.18 in 2018. No data was available beyond 2018.

³⁰ National Education Commission (2023). National SDG 4 Midterm Review

³¹ Department of Examination (2022). Performance of Candidates, GCE O/L Examination - 2022. Retrieved from https://www.doenets.lk/images/resources/STAT/2022_OL_POC_1702311346658.pdf

³² Department of Examination (2023). Performance of Candidates, GCE A/L Examination – 2023. Retrieved from [https://www.doenets.lk/images/resources/STAT/AL2023\(2024\)POC_1718034254600.pdf](https://www.doenets.lk/images/resources/STAT/AL2023(2024)POC_1718034254600.pdf)

Indicator (4.c.4)	2016	2017	2018	2019	2020
Pupil-qualified teacher ratio in lower secondary (headcount basis)	20.55	20.63	20.82	20.20	20.84
Pupil-qualified teacher ratio in upper secondary (headcount basis)	21.50	22.09	24.18	-	-

2.3 Higher education

In 2023, Sri Lanka had 17 State universities and 18 higher educational institutes established under the Universities Act. No 16 of 1978³³ functioning under the purview of the University Grant Commission. Moreover, several existing higher educational institutes established under separate parliament acts or legislative enactments provide higher educational opportunities for the student population who are seeking higher academic qualifications³⁴. In addition, many private institutions or cross-border institutions offer higher national diplomas and professional qualifications.

When considering the nature of the national state universities' admissions, the entry requirements directly depend on the examination marks of the G.C.E Advanced level results, and students who have obtained the minimum Z score marks required for the particular courses are eligible to enter the state university system. During the years 2015 to 2022, approximately 20% of the eligible students were able to enter into the State university system³⁵. On the one hand, due to the examination-centred free general education system, students, irrespective of their gender, social status, or income status, can access free higher education based on their exam performance, which helps guarantee equal opportunities without biases. On the other hand, the remaining students who passed the G.C.E Advanced level examination but did not satisfy the minimum z score marks could not enter the state university system.

In Sri Lanka, education provided by state universities is complimentary, while within the study duration, the government offers scholarship schemes such as Mahapola and Bursary schemes for students from lower-income backgrounds, assuring required financial assistance. In addition, in the recent past, the Sri Lanka Ministry of Education introduced interest-free student loan schemes (IFSLS) to promote student higher education enrollment by non-state Higher Education institutes approved by the Ministry of Education³⁶.

Regarding the credit transfer systems, Sri Lanka University Grant Commission Circular 05/2021³⁷ states clear criteria university applicants should follow; thus, it indicates available guidelines within the national higher education sector. Based on the mentioned circular, university students can credit transfer or take course exemptions for undertaking a short study period in a foreign university, and those who wish to pursue a brief study period within state universities adhere to the mentioned

³³ Universities Act, No. 16 of 1978. (n.d.). University Grant Commission. Retrieved June 13, 2024, from https://www.ugc.ac.lk/index.php?option=com_content&view=article&id=49&Itemid=195&lang=en

³⁴ National Educational Commission. (2023). Statistical Digest on Education

³⁵ National Education Commission. (2023). National SDG4 Mid Term Review

³⁶ Ministry of Education. https://www.mohe.gov.lk/index.php?option=com_content&view=article&id=348:interest-free-student-loan-scheme&catid=48&Itemid=331&lang=en

³⁷ University Grant Commission (2021). Recognition of prior learning, Credit Transfer and lateral entry in the context of SLQF 2015. https://www.ugc.ac.lk/attachments/2272_Comm.%20Circular%2005_2021.pdf

guidelines. Furthermore, it ensures consistency between institutions for managing such students' requirements.

When discussing flexible learning pathways, the Sri Lanka qualification framework (SLQF) is significant in offering a transparent road map for Sri Lankan learners to understand and achieve their lifelong higher educational targets. The (SLQF) was introduced by the University Grants Commission to facilitate lateral and vertical mobility and progression within Sri Lankan education and career pathways³⁸. This SLQF consists of 12 levels, providing a clear overview when necessary to reach each qualification level.

Regarding Tertiary and vocational educational training (TVET) education, In 2024, 3740 government and private training centres delivered learning opportunities for students within the local context³⁹. As a governing body, the Tertiary and Vocational Education Commission (TVEC)⁴⁰ regulates and guides these training centres to provide uniform quality vocational education and lifelong learning for candidates. In the TVET sector, educational level mapping has been done based on the Vocational Qualifications Framework of Sri Lanka (NVQFSL), which has been very important in upgrading the required educational possibilities of TVET students. The hierarchical structure of the NVQ framework consists of 7 NVQ levels, and students willing to upgrade their qualifications can access each pathway by fulfilling the required requirements. Furthermore, there is higher flexibility in course selection and access for students seeking access to TVET; thus, they can reach the NVQ level 7 (B.Tech degree) and move upward through the SLQF.

However, compared to the financial incentives and scholarships available in the state university system, TVET-enrolled students have fewer financial incentives for continuing their studies, which is considered one constraint for attracting more candidates for the sector. Concerning education charges, most public TVET training institutions provide their courses free of charge, and private TVET institutions also charge affordable fees compared to the course fees of private degree programs offered by non-state institutions.

As discussed in the previous passage, In Sri Lanka, access to the State universities is determined by the cutout mark of the G.C.E (A/L) examination; hence, a limited number of students can access the university system. The percentage of students entering universities during the 2015 to 2019 period stood at 18.68, 19.10, 19.25, and 18.98, respectively⁴¹. Therefore, these numbers evidently highlight the lower capacity of the state university system to enrol candidates from general education. In recent years, establishing private universities has expanded the learning opportunities for required groups, which is considered a favourable development in the higher education sector. However, most of these private universities are registered under the Company Registration Act and BOI, and there is no central regulatory and legislative body to monitor the quality of these institutes. Furthermore, the costs associated with degrees offered by private universities are high and not afforded by students from lower-income families.

When considering the TVET sector, students are less attracted to the sector due to social, cultural, and economic reasons, which can be regarded as a major limitation. On one hand, the social image of

³⁸ University Grant Commission. (2015). Sri Lanka qualification framework (SLQF). https://eugc.ac.lk/qac/downloads/SLQF_2016_en.pdf

³⁹ http://www.nvq.gov.lk/Insreg_Home/Insreg_Institute_Select_Search_Results.php?prv=&dist=&gsd=&srch=1&own=&ins=&pnum=&ind=&coun=&sort=REG&sr_status=All

⁴⁰ Tertiary and Vocational Education Act No.20 (1990, June)

⁴¹ National Education Commission. (2022). National Education policy Framework (2020-2030)

vocational training is undermined by society; thus, most qualified students are willing to join the university system, which creates extreme competition.

Subsequently, fewer teachers available to teach students can be considered a significant limitation on uplifting the capacity and quality of tertiary education in Sri Lanka collectively for higher education and the TVET sector.

In addition, government investments in the TVET sector compared to higher education are lower, and further funds are needed to develop according to the dynamic local and foreign labour market demand.

2.4 Adult education and alternative learning

Non-formal education programs initiated and coordinated by the Non-Formal Education Branch of the Ministry of Education (NFE/MoE), through MoE Circular No 36/2022, dated 2022/12/03. “Guidelines on Implementation, Monitoring, and Supervision of Non-Formal Education Programs and the Data Recording Book”⁴² has provided guidelines on implementation, monitoring, and supervision of non-formal education programs and data recording which aim to strengthen and expand the non-formal education programs covering a wide range of themes and topics.

The NFE/MoE has initiated and conducted various youth and adult literacy programs, advocacy initiatives, and capacity development initiatives in liaison with Provincial Education Authorities and Technical and Vocational Training Centres in regular manner⁴³. Some examples of these initiatives are:

- Functional Literacy Programs to non-school-going children, youth and adults;
- Community Learning Programs for adult target groups including unemployed youth and housewives – such as literacy training programs, awareness programs on social issues, and short-term training program on income generation activities;
- ‘Nenasarana’ Programs for Street Children to provide basic education and care for homeless children;
- Vocational Training Programs designed for school leavers to acquire vocational skills;
- Orientation Programs for preparing women for foreign employment;
- Gap filling training programs for assisting non-school-going children in transitioning them to formal education; and Entrepreneurship Training Programs offered to school leavers/dropouts to foster entrepreneurial skills.

3. Quality education provision and learning environment

3.1 General measures

❖ State monitoring and inspections

Establishment of the Evaluation and Quality Assurance Unit at Ministry of Education In 2001, it has established to conduct the process Guidelines for Internal Evaluation in 2005 with 12 National

⁴² Circular No 36/2022, dated 2022/12/03. “Guidelines on Implementation, Monitoring, and Supervision of Non-Formal Education Programs and the Data Recording Book”, Ministry of Education: Sri Lanka

⁴³ Ministry of Education (2015, 2016, 2017, 2018, 2019, 2021) *Annual Performance Report of Non-Formal Education Branch*

Educational Standards which fit into the four principal themes of I) Equity, II) Quality, III) Resource Efficiency, and IV) Good Governance. Provincial Quality Assurance Units are established in 2005 and it introduced Guidelines on Educational Standards and the compilation of an External Evaluation book in 2007. The existing formal methodology on external and internal evaluation was established with the introduction of Guidelines on National Education Standards in 2009. It has focused on assessing school performances in eight areas; I) students' achievement, II) learning, teaching and assessment, III) formal curriculum management, IV) co-curricular activities, V) student welfare, VI) leadership and management, VII) physical resources management and VIII) school and community. This was implemented across all schools through the circular instructions issued by the Ministry of Education, initially in 2008/16⁴⁴, and then again in 2014, circular No. 31/2014⁴⁵.

❖ Health and sanitation

The Sri Lankan government has implemented several Health-Promoting programs as:

- Supplementary nutrition program
- Preventive healthcare measures
- Psychological well-being of students
- Medical screening
- Reproductive health and personal hygiene

Mainly there are two policies have initiated for Promoting Health-Promoting Learning Environments for Health Education in Sri Lanka as:

Obesity Prevention Policy and Guidelines - The Family Health Bureau's School Health Unit under the Ministry of Health developed policy, programs, and guidelines aimed at preventing obesity among school children. These were approved by both the Cabinet of Ministers and Parliament, laying the foundation for national Obesity Prevention Guidelines. These guidelines provide schools with a framework to promote healthy lifestyles and combat obesity. Furthermore, comprehensive training sessions on obesity prevention (TOT) were held, ensuring broad coverage across all districts.

National School Health Policy: The School Health Unit (SHU) of the Family Health Bureau under the Ministry of Health, collaborating with the Ministry of Education, has developed a National School Health Policy. This initiative seeks to enhance the emphasis on health education in schools by embracing a comprehensive approach to student well-being. The policy has received endorsement from the Secretaries of Health and Education and is pending Cabinet approval for complete implementation.

In Addition, following programs are conducting.

- The Family Health Bureau (FHB) of the Ministry of Health indirectly contributes to global citizenship education through teaching soft skills like life skills and mindfulness.
- The School Health Unit (SHU) conducts, monitors, and evaluates School Medical Inspection (SMI) and School Health Programs (SHP) to improve children's physical, nutritional, and psychological well-being.

⁴⁴ Ministry of Education. (2008). "Adyapanaye gunathmakabhawaya thahawuru kireema sandaha wu nawa egayeem ha niyamana wedapiliwela". Circular No.2008/16

⁴⁵ Ministry of Education. (2014). "Pasal adyapanaye gunathmakabhawaya thahawuru kireema sandaha wu egayeem ha niyamana wedapiliwela". Circular No. 31/2014

- Educational programs on life skills, sexual and reproductive health, and career guidance are conducted for school children.
- Weekly Iron Folic Acid Supplementation (WIFS) has been provided to students in grades 1-13 since 2014 to prevent iron deficiency.

❖ Safety

The Ministry of Education has released the National Guidelines for School Disaster Safety (2008) to enhance safety within schools, including directives to eliminate unsafe constructions. Furthermore, Circular No. 16/2021 has been issued to provide instructions and guidelines for managing emergency situations through the implementation of the "School Safety Program for Disaster Risk Management". Despite these proactive steps, the Ministry of Education has not yet conducted a comprehensive nationwide assessment to evaluate the condition of school infrastructure, especially concerning the availability of facilities for children with special education needs.

❖ Infrastructure

Ministry of Education together with Provincial Education Authorities has already taken measures to enhance educational resources to schools. In this regard, efforts have been made to provide computer and internet facilities, gender-separated sanitary facilities, and drinking water facilities in schools within specified time frames.

❖ Curriculum,

The National Institute of Education (NIE) develops a standardized curriculum for each grade in schools to maintain uniformity across the country, as stipulated in the NIE Act No. 28 of 1985. Curriculum policies have evolved through reforms in 1972, 1997, and 2003. Primary education follows international norms by introducing an integrated curriculum, which shifts towards subject-specific studies as students' progress to secondary levels.

❖ Student to teacher ratio

According to the 2021 School Census Report, the student-teacher ratio (STR) stands at 16.8 students per teacher when considering all teachers. However, this ratio increases to 21.6 students per teacher when focusing solely on qualified teachers⁴⁶.

The Ministry of Education has taken several measures to improve school discipline - minimize and prevent bullying and violence so as to create a safe, healthy and supportive learning environment for students and staff well-being.

❖ School discipline

Efforts to reduce corporal punishment and violence against children in schools have been recognized as urgent and necessary. Measures such as the establishment of 'Child Safety Committees' and the issuance of circulars have been implemented to promote a safe and secure environment for children.

⁴⁶ Ministry of Education (2021). School Census. https://moe.gov.lk/wp-content/uploads/2023/02/School_Census-2021_Summary-Tables-Final-Report1.pdf

The MoE Circular No.2011/17 dated 2011/05/10 on 'School Children Protection Committee'⁴⁷, and the MoE Secretary's Circular No. 12/2016 dated 27/04/2016 on "Ensuring Discipline Within Schools"⁴⁸ have prescribed procedures on addressing the issues like corporal punishment, conflicts among students, harassment and violence.

❖ Supplementary nutrition program

School mid-day meal program commenced few decades ago has further been strengthened with the provision of glass of milk every child with a focus on schools with fewer than 200 children⁴⁹.

❖ Preventive healthcare measures

Preventive health measures were implemented by issuing guidelines to educational institutions to prevent the spread of the virus to combat the spread of COVID-19 among students – such as raising awareness on the epidemic, promoting hand hygiene, wearing face masks, maintaining distance, etc. In addition, schools were kept closed for few months and online delivery instructions was adopted to reach the students.

❖ Psychological well-being of students

Various activities were introduced during school closures. Such as school counseling services for providing guidance and emotional support, and the recruitment and training of teachers on counseling. In addition, "*Sathi Pasala*" program was implemented to provide guidance and promote mental health among students⁵⁰. These activities were aimed to create a positive learning environment and address student issues such as frustration, aggression, and disobedience so as to promote students' engagement in the learning process, Home-based learning activities involving adults were also encouraged.

❖ Medical screening

Regular medical examinations have been introduced for students in primary grades to assess their health and nutritional status, and identify any disabilities⁵¹ and provide directions for early interventions.

❖ Reproductive health and personal hygiene

Modules on reproductive health and personal hygiene education have been included in the science and health and physical education curricula⁵². The curriculum covers topics such as preventing underage pregnancies and sexually transmitted diseases, with different approaches for each age group.

⁴⁷ Ministry of Education Circular No.17/2011 dated 2011/05/10 on "School Children Protection Committee"

⁴⁸ Ministry of Education Circular No.12/2016 dated 2016/04/07 on "Ensuring discipline within schools"

⁴⁹ Ministry of Education Circular No. 24/2023 dated 19-5-2023 on Government Nutrition Program on providing Meals for School Children

⁵⁰ Ministry of Education (2023) Mindfulness for Your School; Retrieved May 25, 2023 from <https://www.satipasala.org/mindfulness-for-your-school-sinhala/>

⁵¹ Ministry of Education Circular 02/2019 dated on 2019/1/22 School Health Promotion Programme

⁵² Ministry of Education (2020) NATIONAL CURRICULUM FRAMEWORK FOR SECONDARY EDUCATION IN SRI LANKA https://educationforum.lk/wp-content/uploads/2021/08/MoE_Framework_SecondaryEducation_2020Nov.pdf

❖ Prevention of potential threat of substance abuse

The MoE has also implemented various initiatives to prevent any likelihood of occurrences of substance abuse among school students, including teacher training workshops, counseling camps, etc., and in collaboration with experts from relevant government agencies, School Health Unit of Family Health Bureau of the Ministry of Health and the police.

❖ Child abuse and violence against children

Data on child abuse, violence, and complaints received by education authorities indicate a considerable number of cases reported annually⁵³. Despite the implementation of various programs and strategies, the complete elimination of violence and abuse remains to be a challenge. Though,

- Improve school discipline, prevent the occurrence of substance abuse by students and eliminate harassment and violence.
- Further, as stated in the Section on “Reproductive Health and Personal Hygiene” the general education curriculum includes modules on sex education and reproductive health, and teachers are being trained to deliver this information effectively⁵⁴.
- School Health Promotion Program conducted by the Ministry of Health jointly with MoE which commenced in 2007⁵⁵ has further been strengthened in 2019 through the Circular No. 1/12 of 28-1-2019⁵⁶ that gave instructions to initiate micronutrient supplementation (i.e. Iron, folic acid and Vit.C) for school children and this initiative has further been complemented by introducing a health insurance scheme that was initiated in 2017⁵⁷.
- In 2020, the minimum age for employees has been increased from 14 to 16 according to a Cabinet memorandum⁵⁸ to minimize child labour.
- Scholarships and support services have been provided to economically disadvantaged children through various programs such as ‘Subhaga’ scholarship program, UNESCO scholarship Program, ‘Sujatha Diyani’ Korean Scholarship Program, etc., to support student from economically disadvantage segments of the society⁵⁹.

Challenges encountered in realizing Quality Education

❖ Inadequacies in infrastructure facilities and education resources

Many schools continue to face shortages in essential amenities like safe drinking water, gender-appropriate restroom facilities, and access to computers and the internet. Moreover, while there is a lack of empirical data, there is evidence indicating deficiencies in providing learning resources for both

⁵³ National Child Protection Authority of Sri Lanka (2015-2022) statistics Retrieved May 2, 2023 from <https://childprotection.gov.lk/index.php/en/resource-centre/statistics-3>

⁵⁴ Ministry of Education (2020) NATIONAL CURRICULUM FRAMEWORK FOR SECONDARY EDUCATION IN SRI LANKA https://educationforum.lk/wp-content/uploads/2021/08/MoE_Framework_SecondaryEducation_2020Nov.pdf?

⁵⁵ Ministry of Health General Circular No. 1/37/2007, dated 26-11-2007 – School Health Programme

⁵⁶ Ministry of Health General Circular No. 1/12/2019, dated 28-1-2019 – Weekly Iron, Folate Supplementation (WIFS) for School Children

⁵⁷ Ministry of Education (2018) Annual Performance Report 2018 Retrieved April 10, 2023 from <https://www.parliament.lk/uploads/documents/paperspresented/performance-report-ministry-of-education-2018.pdf>

⁵⁸ Cabinet memorandum /20/1290/307/003 dated 2020.09.20, Ministry of Education. Sri Lanka

⁵⁹ MoE Annual Performance Reports – 2015 to 2022

academic and extracurricular activities, such as science laboratory equipment, sports resources, and facilities for students with special educational needs

❖ Violence in schools

Need for promoting school discipline: There have been frequent reporting on incidents of indiscipline and bullying among students in schools. The incidences appear to be higher in lower-secondary schools and among boys compared among female students.

Need for mitigating potential drug abuse among children: Concerns have been continuously raised by civil society and media regarding the potential diffusion of substance abuse among school children.

Need for mitigating violence against children: the complaints on alleged attacks on children including child abuse, neglect, and domestic violence, etc., have still been prevalent.

❖ Cost of education

The Government expenditure on education as a share of GDP decreased from 2.06% in 2015 to 1.52% in 2022. Expenditure also decreased as a share of government expenditure from 9.8% to 8.8% over the same period. Though, a part of the annual budget allocation would have gone into development of education facilities, an accurate estimate of the quantum of funds gone into that purpose could not be estimated from the MoE records.

The Government has introduced many measures such as free-education, school uniforms, textbooks, meals, scholarships, free health insurance, etc., to students including the students with special education needs. Despite these welfare measures, the education budget, in terms of percentage of total government GDP expenditure has remained below the requirement thus creating a shortfall in funds available on annual basis. The Government share of expenditure on education (including general, higher education and technical and vocational education) has been low and as a percentage of GDP it has been fluctuating below 2.0% during period from 2015 to 2022. Further, in terms of another measures, the share of education expenditure out of total Government expenditure has declined from 9.8% in 2015 to 8.2% in 2022.

❖ Conflicts or crises

The COVID-19 pandemic has had a profound effect on education in Sri Lanka, including university and technical and vocational education and training (TVET). In response, the Sri Lankan government and education stakeholders have implemented various measures. These efforts include the provision of online learning resources, the development of new learning materials, and training programs for teachers to adapt to online teaching methods. However, there remains a pressing need to ensure that all students can access high-quality education throughout and beyond the pandemic. The shift to online and distance learning has been a significant change in university education, presenting challenges for students and faculty alike. Limited internet connectivity, lack of access to computers and technology, and the adjustment to new learning formats have posed difficulties for many students. In the case of TVET, the disruption of practical training and apprenticeships has been a notable consequence of the pandemic. Social distancing measures and movement restrictions have made it challenging to provide hands-on training, leading to delays in completing programs and impacting graduates' employability.

3.2 Education personnel

- ❖ Teacher training is provided without discrimination.

The Ministry of Education follows the guidelines of the Sri Lanka Teacher Service Minute (SLTSM), ensuring a rigorous teacher recruitment process based on competitive examinations. Furthermore, the government occasionally hires graduates specializing in fields other than education for teaching positions. These individuals also undergo professional training in education to qualify as fully trained teachers.

Recruitment into SLLTS is done based on multiple eligibility criteria: Persons with G.C.E (A/L) qualifications, NDT obtained NCoEds and SLIATE (only for limited disciplines), graduates in BEd qualification and graduates of other disciplines. Persons with G.C.E (A/L) qualifications as well as the graduates of disciplines other than education are required to become professionally qualified teachers by going through - in-service training leading to recognized professional qualifications. All such 'untrained' teachers are provided study leave with pay to follow such courses at the TTC or NIE or universities.

- ❖ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

With the salary increase granted in 2021, to all categories of teacher cadre of Sri Lanka Teacher Service (SLTS) as per the circular issued by the Ministry of Public Administration, Home Affairs, Provincial Councils and Local Government through its Circular No. PAC 03/2016 (IV) dated 05 Jan 2021.

- ❖ Initial training and continuous professional development are provided

At the provincial level, the Provincial Departments of Education collaborate with In-service Training Advisors (ISAs) who receive regular updates from the NIE to organize and conduct in-service training programs for teachers. Recently, several non-state higher education institutions (NSHEIs) authorized by the Ministry of Education to award degrees have also started providing pre-service education training at diploma and degree levels.

- ❖ Minimum standards and qualifications required for the teaching profession

Teacher deployment across the provinces and schools are also done on criteria-based procedures to ensure the teachers are placed/deployed on need basis and in fair manner.

The MoE defines the norms and criteria for teacher cadre reviews considering the subjects of curriculum and teachers' qualifications. The norms and criteria defined by the MoE are issued through circulars: Circulars on Determination of the Academic Staff of a School No. 01/2016 dated 07.01.2016 and 06/2021 dated 28.04.2021⁶⁰. Accordingly, the cadres for schools are calculated by the Provincial Departments of Education and the Ministry of Education. The Ministry of Finance/ Department of Management Services grant the final approvals for the school-based academic cadres in respect of provincial schools to the Provincial Councils and for national schools to the MoE. This mechanism ensures the fair distribution of teachers in school system.

⁶⁰ MoE, Circulars on Determination of the Academic Staff of a School No. 01/2016 dated 07.01.2016; MoE, Circulars on Determination of the Academic Staff of a School No. 06/2021 dated 28.04.2021;

❖ Measures taken to strengthen the social status and attractiveness of the teaching profession

The MoE has introduced a scheme for incentivizing teachers who are deployed to and serve in such schools⁶¹. Such schools are managed by the Provincial Councils and annual allocations for the incentives are made through their annual budgets by the Treasury to the Provincial Departments of Education.

The prevailing in-service teacher training system coupled with the provisions the incentives such as duty leave for attending teacher training programs, payments of participation fees, study leave (full-time/part-time) and course fee to read for professional qualifications provides a promising environment for upgrading teachers' competencies on continuous basis, and it is expected that the proposed TCF will strengthen the system further when it is introduced to and institutionalized in the education system.

❖ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

The prevailing in-service teacher training system coupled with the provisions the incentives such as duty leave for attending teacher training programs, payments of participation fees, study leave (full-time/part-time) and course fee to read for professional qualifications provides a promising environment for upgrading teachers' competencies on continuous basis, and it is expected that the proposed TCF will strengthen the system further when it is introduced to and institutionalized in the education system

❖ Establishment of performance monitoring system

Examples for establishment of performance monitoring system

- (i) Teacher Competency Framework (TCF): The MoE, in 2021 commenced working towards the design and introduce a National Competency Framework for Teachers that defines the criteria-based teacher competencies and evaluation procedures of teachers with the aim of improving teacher competencies and professionalism. However, this is yet to be introduced to the education system.
- (ii) Teacher performance appraisals: All teachers in SLTS are required to submit themselves for annual as well as periodic appraisals as per the SLTS Minute, and as a prerequisite for such appraisal, all teachers have to go through continuing professional development programs (CPDs) periodically. To facilitate this, the MoE in liaison with the PEDs, implements modular-based CPD programs, country wide, through the Teacher Centres (TCs) located at zonal education levels.
- (iii) School-based Professional Teacher Development Programs (SBPTDPs): The SBPTDPs are arranged by principals in liaison with ISAs which helps teachers to improve their professional practices with the help of the peers of the same school or of neighboring schools.

⁶¹ MoE Circulars, No. 2005/01 dated 2005.01.18; No. 2005/02 dated 2005.01.18; No. 2006/43 dated 2006.11.24 and No. 2006/44 dated 2006.11.27

Challenges encountered in the Education personnel

❖ Relative high percentage of untrained teachers

According to the School Census data of 2021, only 77% of teachers are qualified (graduate-trained and trained teachers). Despite the 'vision for a full graduate teacher cadre' since the mid-2000s, this goal has not yet been fully achieved. Approximately 43% of teachers (104,056 out of 241,054) are non-graduates, although many of them possess NCoE Diploma or TTC certificates. Moreover, even among the graduate teachers, only 66% (90,371 out of 136,998) have received professional training to become 'trained' graduate teachers. This situation stems from the practice of recruiting university graduates in disciplines other than in education, and thus without having the necessary teaching skills from time to time in large numbers as teachers and delay in providing provisions for them for acquiring post-recruitment professional training at TTC, NIE and Faculties of Education of Universities.

❖ Inadequate coordination among MoE and Teacher Education Institutions

Absence of a coordinated plan and efforts between the Ministry of Education (as the client) and teacher education institutions, such as the NCOEs, NIE, TTCs and universities (as the trainers), hinders the effective achievement of targets with the available resources. At the university level, there is inadequate collaboration among the Departments/Faculties of Education with the other Departments/Faculties which offer training in disciplines like science, mathematics, and management, and thus hindering the production of subject-specific, professionally qualified graduate teachers to teach disciplines like, languages (English, Sinhala and Tamil), science, mathematics, management, technology, etc. As a result, there is shortages of teachers in above subjects in schools, particularly in schools located in semi-urban and rural areas of the country and in plantation areas, especially for teaching at G.C.E(A/L) level subjects such as sciences, mathematics and English. Further, there are shortages of teachers in Tamil medium schools.

❖ Declining opportunities for teacher training provided through International Corporation

As emphasized in the Report on Target 4(b), there has been a declining trend in the number of scholarships offered for teacher training, particularly for academics and master trainers of TEIs through aids/grants provided by the international development agencies, and through bilateral partnerships.

3.3 Respect for human rights and fundamental freedoms

Curriculum includes human rights education.

In 2021, the Asia-Pacific Centre of Education for International Understanding (APCEIU) and the National Institute of Education (NIE) collaborated on a project to create the Global Citizenship Education (GCED) curriculum framework. This framework includes themes, sub-themes, and learning outcomes designed for various levels of school education. It addresses gender equality within Theme 3 (Human Rights and Duties), focusing particularly on the sub-theme 'Equity, equality, and sensitivity (social hierarchy, gender, age, race)'

3.4 Non-state actors in education

International schools have mushroomed over the last 4 decades without having any regulatory control by the Ministry of Education. The low public perception about the quality of education offered by some public schools and the poor access to better quality public schools have contributed to this increasing number of students being admitted into private education institutions. As they are not coming under the purview of a regulatory authority or quality assurance agency, the quality of education provided by these schools is uncertain. Further, as they are registered with different agencies, the up-to-date information related to students, teachers, facilities, and performance of these schools are not available. Moreover, there is no information with regard to the curricula followed by these schools, and as such, it is uncertain whether the education offered by such schools is aligned with the National Education Goals of the country.

The non-State sector of Higher Education too has expanded rapidly since 2015. By 2022 there were 25 non-State Higher Education Institutions (NSHEIs) institutes which have received degree awarding status and registered under the Ministry of Education. Besides that, there are an unaccounted number of NSHEIs offering programs at tertiary education levels through cross-border arrangements with overseas HEIs. These unregistered non-state sector institutes enrol a significant portion of students with upper secondary school qualifications (i.e. G.C.E (O/L) and G.C.E A/L qualifications). Unfortunately, data with respect to this sector is not available to make any comments.

As stated already in this report, Sri Lanka provides free education from primary to tertiary education. In addition, the Government of Sri Lanka provides financial assistance to those students who enrolled in study programs in State universities under several grant schemes - 'Mahapola' scholarships and bursary schemes - to support economically deprived students to continue their education. Further, the students who are seeking higher education opportunities in non-State sector are supported through the concessionary bank loan scheme. However, this scheme is open only to those students who are enrolled in NSHEIs that are operating with degree-awarding status granted by the Ministry of Education.

Public sector TVET institutions offered courses free of charge, or cost-recovery basis for selected socially demanding courses. Nevertheless, some of the courses with higher labour market demand are offered free of charge to encourage participation. All public TVET institutions have now started charging course fees for the socially demanded courses. Private sector TVET institutions charge varying fees due to various cost factors governed by the regulations stipulated by the TVEC.

The quality and standards of study programs and institutions of State higher education sector are monitored by the Quality Assurance Council (QAC) of the University Grants Commission (UGC), and fostered through the Internal Quality Assurance Systems operating in individual HEIs. However, there is a continuing trend of graduate unemployment in the labour market and this phenomenon has been partly attributed to poor quality and standards and relevance of study programs offered. Therefore, the UGC and respective universities have been taking progressive measures to improve the quality and standards and relevance of their offerings, including development soft-skills among the undergraduates. Unfortunately, quality assurance system operated by the QAC/UGC does not cover the non-state HE sector – for both, the MoE approved degree-awarding institutes and as well as the NSHEIs which offer study programs mostly through cross-border arrangements.

Continued expansion of vocational and technical education and training opportunities provided through the network of State and non-State TVET institutions and centres. To regulate and improve the quality and standards of TVET training programs, and improve the vocational literacy and numeracy among youth and adult, the Tertiary and Vocational Education Commission (TVEC) was established in 1991 (through the Tertiary and Vocational Education Act No. 20 of 1990), and the TVEC has proceeded to introduce National Vocational Qualification Framework (NVQF) in 2004 as a part of its efforts to improve the quality and standards of TVET programs. In 2018, the TVEC adopted the National Policy on Technical and Vocational Education prescribed by the NEC, and implemented many initiatives which specifically targets disadvantaged youth, disadvantaged/vulnerable women, people with disabilities (including students leaving special education schools), and the economically down-trodden/poor. These efforts were also supported by several foreign funded projects

Furthermore, interest-free loan schemes are available for students studying in non-state higher education institutions (NSHEIs) operating with degree-awarding status granted by the MoE. Interest-free Loan Scheme for Non-State Higher Education Institutes (NSHEIs): An interest-free loan scheme has been offered through a State bank (Bank of Ceylon) for students choosing to study in NSHEIs which are operating with degree-awarding status granted by the MoE. By 2022, around 13,864 students studying in NSHEIs have benefited from this scheme. The Treasury pays annual interest to the bank and the students are expected to repay the loan after completing their degree programs and entering the labour market.

3.5 Digital education

The rapid emergence and evolution of digital education in Sri Lanka has been attributed to the country's government's efforts to improve the quality and accessibility of education. Government has taken many initiatives to leverage the digital education in to School System. The Ministry of Education in Sri Lanka has several key branches dedicated to ensuring the effective administration and implementation of digital education within the school system. These branches include the Information Technology Branch, Distant Learning Development Branch, and Data Management Branch. These branches play a crucial role in integrating digital tools and technologies into the educational system and are responsible for developing and maintaining the digital infrastructure in schools especially providing relevant human and physical resources.

In order to formalise the process MOE has formulated and launched a Policy for Digital Transformation of Education on 07 April in 2022, recognizing the national importance of integrating technology into education in collaboration with the Information and Communication Technology Agency (ICTA). This policy places special emphasis on addressing the current issues prevalent in schools, vocational, and higher education sectors⁶². Besides, with the effect of Covid pandemic distance education mode using online learning is implemented and particular guidelines are documented. Circular and Guidelines on Distance Learning for School Education in Sri Lanka⁶³ in parallel. Moreover, Management Information Systems (MISs) are introduced and functioning under MOE in order to handle teacher and student information. Provision given by Circular No: 30/2019 - Human Resource Management Online System of Teachers established under the national Education Management Information system.

⁶² <https://www.icta.lk/icta-assets/uploads/2022/04/Policy-for-Digital-Transformation-of-Education-English-1.pdf>

⁶³ <https://moe.gov.lk/wp-content/uploads/2021/09/ENGLISH-06.09.2021.pdf>

To support digital education, the government has implemented different types of online platforms such as School Net, Web Patashala, and e “Thaksalawa. The aims to enhance ICT infrastructure in schools, ensuring that students and teachers have access to necessary digital tools. These platforms offer interactive lessons, quizzes, and multimedia content to make learning more engaging.

Channel NIE is an educational television channel managed by the National Institute of Education (NIE) in Sri Lanka. It is designed to broadcast educational content to supplement the formal school curriculum and support students' learning needs. It broadcasts programs that are aligned with the school curriculum, which ensures that students have easy access to the necessary resources.

It provides separate channels for Tamil medium, English medium, for kids and for professional development. The Channel NIE's commitment to providing the best possible education to Sri Lanka's students is evidenced by its digital channel. It aims to ensure that every student has the chance to succeed academically by delivering high-quality content⁶⁴.

Time to time government is providing more ICT infrastructure covering the whole country, especially for providing access to rural areas. They have provided 1000 Nenasa Distance Education Units and 1000 Computer Laboratories⁶⁵ covering Sri Lanka.

In spite of the progress that digital education has made in Sri Lanka's educational system, there are still many challenges that need to be resolved to ensure its sustainability and effectiveness. Infrastructure and Connectivity, Digital Literacy, Content Quality and Relevance, Equity and Inclusivity, Parental Support and Involvement , Sustainability and Funding ⁶⁶.

NEPF 2023-2033 has clearly spelled out the importance of Ministry of Education to launch a pilot project that will introduce Artificial Intelligence to the school curriculum. The goal of this project is to provide high school students with an opportunity to develop their skills in the field of information technology⁶⁷ with the present industry partnerships.

In spite of the progress that digital education has made in Sri Lanka's educational system, there are still many challenges that need to be resolved to ensure its sustainability and effectiveness. Infrastructure and Connectivity, Digital Literacy, Content Quality and Relevance, Equity and Inclusivity, Parental Support and Involvement, Sustainability and Funding ⁶⁸are some of the key challenges encountered. Policy guidelines provided in NEPF 2023-2033 for relevant curricular reforms and the policy on digital transformation will be strong enough to address those challenges. However, it will take more time due to difficulty in financing digital education solutions sustainably.

According to the NEPF 2023-2033, Digital tools such as digitalized content, artificial intelligence, digital platform and virtual modes of teaching and learning are used increasingly to enable collaboration, communication among learners and educators, and accommodate varied learning styles and abilities to ensure an inclusive education, Teaching and learning processes are interactive, engaging, holistic, and digitally enabled, Data analytics and artificial intelligence are used to monitor, assess and improve learning outcomes and processes as appropriate, Education is self-directed, personalized, more

⁶⁴ <https://www.youtube.com/channel/UChr7K9dI0ZkPFm1AuXyXW-g>

⁶⁵ <https://moe.gov.lk/wp-content/uploads/2020/06/A-Transformation-in-Sri-Lankan-Education.pdf>

⁶⁶ <https://www.adb.org/sites/default/files/linked-documents/52203-001-sd-01.pdf>

⁶⁷ <https://pmd.gov.lk/news/ministry-of-education-partners-with-microsoft-to-introduce-artificial-intelligence-into-school-education/>

⁶⁸ <https://www.adb.org/sites/default/files/linked-documents/52203-001-sd-01.pdf>

engaging, connected and data driven through digitalization, Students are digitally literate and have the skills to keep up with the changing demands and opportunities of the digital era.

4. Strengthening governance systems

Successive governments since pre-colonial period have introduced progressive reforms in education system. The momentum of progressive education reforms has further been accelerated since independence in 1948 with further expansion of the education system coupled with provision of wide range of incentives that led to widespread provision of educational opportunities to ensure free and equitable manner across the country.

With the enactment of the 13th Amendment to the Constitution and the concurrent establishment of Provincial Councils, the governance structure of general education has become very complex. It has elements of decentralization, delegation, and devolution of functions and powers between the Central Government and the nine Provincial Councils. Policymakers and legislators have sought to combine the advantages of centralized governance in the general education system, which facilitates goals such as nation-building, social cohesion, and uniform quality standards, with those of the delegated management system such as proximity of administrative services and ease of supervision and oversight. Nevertheless, there is still some degree of ambiguity as regards the delineation of powers and functions between the Centre and Provinces as some of the devolved subjects are still handled by the MoE.

The central government is responsible for national policy, curriculum, textbook choices, providing incentives to increase attendance, administering national schools, human resource management and professional development for teachers and principals, conducting exams, and other services, such as special education and non-formal education. Actual delivery of these services often combines central and provincial staff, with the latter operating within a matrix of management structure — Provincial Department of Education, Zonal Education Offices, and Divisional Education Offices and schools. Provincial Councils draw up education plans and budgets and employ and deploy provincial education administrators, principals, and teachers. Zonal authorities transfer and deploy principals and teachers within the zones.

NEPF 2023-2033 has further emphasised that the actors and institutions with a stake in the Sector, both state and non-state, shall be identified and their roles and functions clearly defined allowing for autonomy based on the principle of subsidiarity, ensuring alignment with national standards to minimize top-down decision-making and avoid institutions acting in silos.

NEPF 2023-2033 has proposed the following innovations in promoting good governance.

- The Minister for Education shall be responsible for formulating policies and programmes, monitoring and evaluating their implementation, coordinating with Provincial Authorities to ensure Provincial plans are consistent with national policy, standardizing and regulating teacher and other related education services, and facilitating student welfare and safety. The Minister for Education shall report annually to the Parliament and the public on National Education Outcomes in terms of Access, Quality and Relevance, by Education Sub-Sector, key regulatory or administrative institutions.

- The Minister for Education shall be advised by; A National Advisory Committee for Education composed of distinguished educators with expertise and experience in Early Childhood, Primary, Secondary and Tertiary Education, appointed by the Cabinet of Ministers and published in a Gazette, shall counsel and guide the Minister for Education. This Advisory Committee will replace the current National Education Commission (NEC)
- An Expert Committee for the Integration of ICT in Education consisting of industry experts shall be established to develop and monitor the implementation of the Technology Integration Strategy across all Sub- Sectors of education and administration
- A Directorate of Provincial Education Authorities, consisting of Provincial representative/s appointed by the Cabinet of Ministers, shall advise the Minister of Education to plan, execute and evaluate education initiatives and projects at Provincial level.
- The Ministry of Education shall consist of the following divisions for an efficient and coordinated operation;
 - Policy Research and Formulation
 - Monitoring and Evaluation
 - Inspectorate for Quality Assurance and Control
 - Provincial Affairs Coordination
 - Digital Transformation and Data Management

Challenges encountered in terms of governance

Sri Lanka has historically devoted a comparatively small percentage of its government expenditure towards education. Sri Lanka's public expenditure on education as an average from 2010 to 2018 was 2.1% of GDP⁶⁹ Though 30 years have passed since devolution, there is still some degree of ambiguity as regard to the delineation of powers and functions between the Centre and Provinces as some of the devolved subjects and functions are still handled by the MoE.

The central level structure comprises the Ministry of Education, Department of Examinations (DoE), Department of Educational Publications (DEP), and the National Institute of Education (NIE). The National Education Commission, apex policy formulation body functions immediately external to this structure. There are also overlaps of functions of the MoE and the four institutions. The role, functions, and responsibilities of institutions have been precisely defined and specified in a complementary manner in the relevant Acts of Parliament. However, there has been a tendency for institutions to exceed their mandate without due consultation or authority, resulting in duplication and confusion among personnel responsible for policy formulation, policy implementation, and monitoring. It is important that the MoE, NEC, NIE, DEP, and DoE through a process of consultation and planning must act in concert to ensure that each organization confines itself to its boundaries and limits in the interest of effective functioning of the general education system.

The Education Management Information System (EMIS) is a versatile tool in leading education to the future. It is relevant in contexts where the use of technology is identified as a key global trend in

⁶⁹ UNESCO Institute for Statistics. (2022). Government expenditure on education, total (% of GDP) – Sri Lanka. World Bank. Retrieved May 5, 2021, from <https://data.worldbank.org/indicator/SE.XPD.TOTL.GD.ZS?locations=LK>

education planning. Hence, the greater use of technology would facilitate the management of the MoE and its agencies efficiently. The main role of the Data Management and Research Branch (DMR) is to collect, collate and analyse, and present data expeditiously. One of its main activities in this regard is conducting and processing the school census. Although the process has been computerized, still there are delays in finalizing and publishing the data, thus making them unavailable for use in decision-making in a timely manner. Therefore, it appears that the current data management system is not very effective for use in education planning.

III. Methods used to draw the attention of the various authorities in the country to the instruments

It is imperative that for achieving success in all ten (10) SDG 4 targets in terms of the benchmark indicators and national benchmark values necessitates the involvement of multiple players: national agencies such as national level ministries and policy and regulatory agencies, provincial levels authorities, all key stakeholders, and international agencies and development partners.

National Agencies: The line agency for education, the Ministry of Education (MoE) plays a key role in spearheading the SDG 4 agenda. And at present all the subsectors of education, namely general education, higher education and technical and vocational education are placed under the administrative preview of MoE. As certain powers and functions in relation to education are devolved to Provincial Councils, the MoE together with respective provincial authorities and national agencies like National Education Commission (NEC), University Grants Commission (UGC), Tertiary and Vocational Education Commission (TVEC), National Secretariat for Early Childhood Development (NSECD), and National Institute of Education (NIE) together with the universities and technical and vocational education and training (TVET) institutions, host of teacher training institutions (TEIs) such as National Colleges of Education (NCoEds), Teacher Training Centres (TTCs) and Teacher Centres (TC) and together with the national and provincial schools take the responsibility for the implementing SDG 4 agenda across the respective subsectors of education. At the central ministry level, the Education for All Branch of the MoE (EFA/MoE) has been assigned with the responsibility of spearheading and coordinating the activities related SDG 4 Targets. In addition, to the above listed agencies, a host of other national agencies contribute directly and indirectly to the achievement of SDG 2030 Agenda⁷⁰.

International Funding Agencies and Development Partners: Several international funding agencies and development partners have been actively involved in improving the quality of education and promoting access to education in Sri Lanka.

The key funding agencies include the World Bank (WB) and Asian Development Bank (ADB): The WB has provided continuous financial and technical support through a series of projects: more recent ones are Higher Education for Twenty First Century (WB/HETC -2010-2016)⁷¹; Accelerating Higher Education Expansion and Development (WB/AHEAD (2017-2030); Secondary Education

⁷⁰ <https://sdc.gov.lk/en/agencies/22/50>

⁷¹ Higher Education for Twenty First Century (WB/HETC -2010-2016), <https://documents1.worldbank.org/curated/en/297451468335532412/pdf/HETC1Project0I10Stage1December022.pdf>

Modernization Project (WB/DEMP)⁷²; and Skills Sector Enhancement Program (ADB/SSEP -2014-2022)⁷³. Besides those projects, the Australian Agency for International Development (AusAID) has extended support to Sri Lanka in areas such as gender equality, teaching quality, and overall capacity building in the education sector⁷⁴.

In addition, many collaborative efforts have been initiated by several UN development agencies in achieving SDG 4 Target. These development partners include the UNDP, UNICEF, UNFPA, UN-Habitat, WHO, FAO, WFP, ILO, UNESCO, USAID, etc. The collaborative efforts between these international agencies and Ministry of Education, as well as with the Department of National Planning of the Ministry of Finance have been crucial for advancing the goal of providing equitable, inclusive and quality education and lifelong learning opportunities in Sri Lanka.

⁷² WB/GEM Project <https://projects.worldbank.org/en/projects-operations/project-detail/P163714?lang=en>

⁷³ Sri Lanka Skills Sector Enhancement Programme (2014-2022); <https://www.adb.or/projects/42251-018/main>

⁷⁴ Australian Agency for International Development (AusAID) - <https://reliefweb.int/report/sri-lanka/australia-supports-education-sri-lanka>